

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Criminal Petition No. 1420/2024

Date of Decision: 02-05-2024

Tech Solutions Pvt Ltd ... Petitioner

VERSUS

State of Karnataka ... Respondent

FACTS OF THE CASE:

1. Unauthorized data access under Section 66 of Information Technology Act, 2000.

ISSUES:

1. Intermediary liability and compliance under Section 79 of IT Act.

REASONING & DECISION:

Intermediary exercised due diligence and complied with takedown notice.

RATIO DECIDENDI:

Safe harbor protection under Section 79 applies to compliant intermediaries.

DECISION:

Proceedings against intermediary quashed.